

Mohd. Zubair v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 25 April 2011 · WRIT - C No. 19650 of 2011 · **Writ disposed; deposit 50% of bill with grievance application; reconnect if consumer succeeds.**

HEADNOTE

On a complaint of temporary disconnection without hearing, the Court applied Clauses 4.66, 4.66.1 and 4.66.2 of the U.P. Electricity Supply Code, 2002 and disposed of the writ: if the consumer deposited 50% of the 29 January 2011 bill with a grievance application within one month of the certified copy, the authority was to decide within a further month after full hearing by a reasoned order, and reconnect within 72 hours if the consumer succeeded.

FACTUAL SUMMARY

Mohd. Zubair approached the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Ltd. alleging that his electricity connection had been temporarily disconnected without an opportunity of hearing. The dispute concerned a bill dated 29 January 2011. On 5 April 2011 a Division Bench listed the writ among supplementary fresh cases for 19 April 2011 and allowed the licensee's counsel to take instructions. The petition was heard and disposed of on 25 April 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.66

temporary disconnection without hearing; 50% deposit and grievance application

HOLDING

Applying Clauses 4.66, 4.66.1 and 4.66.2 of the U.P. Electricity Supply Code, 2002, where supply was allegedly disconnected temporarily without hearing, the writ was disposed of directing that if the consumer deposited 50% of the 29 January 2011 bill with a grievance application within one month of the certified copy, the authority would decide within one month after fullest opportunity of hearing by a reasoned order, and reconnect within 72 hours if the consumer succeeded. ¶ 2

FLAG ambiguous: court cited Supply Code-2002 Clauses 4.66, 4.66.1 and 4.66.2 (2005 Code in force in 2011; numbering unverified).

PRINCIPLE TAGS

relegate-to-statutory-remedy On a complaint of temporary disconnection without hearing, the Court applied Clauses 4.66, 4.66.1 and 4.66.2 of the U.P.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TEMPORARY DISCONNECTION WAS LAWFUL AND WHETHER THE 29 JANUARY 2011 BILL WAS PAYABLE ON MERITS.

Left to the authority on 50% deposit and a grievance application; reconnection only if the consumer succeeds there. ¶ 2